

Sukhpal Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 April 2019 · WRIT - C No. 10563 of 2019 · **Writ disposed of; bill relegated to Clause 6.5; supply restored.**

HEADNOTE

Writ for correction of an electricity bill assessed, according to the petitioner, on a 1 kW load, and for restoration of disconnected supply. A dispute as to correctness of the bill is to be raised under Clause 6.5 of the U.P. Electricity Supply Code, 2005; the Court will not entertain the writ when that statutory remedy is available. If the consumer applies to the Executive Engineer or appropriate authority within 15 days, the authority shall decide by a speaking order after hearing, preferably within 30 days. Supply is to be restored forthwith. No coercive measures for 45 days if the Clause 6.5 application is filed in time. Petition disposed of.

FACTUAL SUMMARY

Sukhpal Singh petitioned the Allahabad High Court after disputing an electricity bill he said should be assessed on a 1 kW load. He sought correction of the bill, collection of charges only from the due date through 27 October 2018, restoration of his disconnected supply, and a restraint on coercive recovery. The Electricity Department appeared. The Court treated the writ as raising only a bill-correctness dispute against the licensee.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness dispute; statutory remedy before Executive Engineer

HOLDING

A consumer's challenge to the correctness of an electricity bill is to be raised under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and a writ for bill correction will not be entertained when that statutory remedy is available. On an application to the Executive Engineer or appropriate authority within 15 days, the authority shall consider and decide it in accordance with law by a speaking order after hearing, preferably within 30 days. The licensee shall restore supply forthwith. No coercive measures shall be taken for 45 days if the Clause 6.5 application is filed within the time allowed.

¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL WAS CORRECTLY ASSESSED ON THE PETITIONER'S LOAD

Left to the Executive Engineer under Clause 6.5; the Court did not examine the bill on merits. ¶ 1